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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

BENCH BINDER / HEARING PACKET

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

PURPOSE

This one-page exhibit charts the four-hearing pattern of tribunal reliance on defense counsel’s institutional representations — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15), was misplaced.

THE RULINGS PROCURED FROM THIS RELIANCE CHAIN

Because the Court relied on defense counsel’s categorical representations of non-receipt, Plaintiff lost the following structural opportunities to present his case:

1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11) — 911 audio weaponized against Plaintiff’s witnesses.
2. **911 CDs Excluded** (Jan. 27, p. 38:22–25) — Jury deprived of primary contemporaneous record.
3. **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24) — Contextual record barred.
4. **Continuance Denied** (Feb. 18, p. 181) — No time to address defense’s “surprise” non-receipt claim.
5. **§ 473 Surprise Rejected** (Feb. 18, p. 181:20–25) — Pleas for relief from deception ignored.
6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Plaintiff forced to disprove defense’s false claim.
7. **Supplemental Report Excluded** (RT 7, p. 156:24–28) — Corroborating evidence barred.

FOUR-HEARING RELIANCE CHAIN

Former table columns (**Date**; **Defense Representation (verbatim)**; **Court’s Articulated Reliance (verbatim)**; **Rulings Produced**; **Subsequent Admission of Falsity**) are preserved as labeled bullets under each hearing date.

Jan. 27, 2025

- **Date:** Jan. 27, 2025
- **Defense representation (verbatim):** “completely lacks foundation; not authenticated. We

1 have no idea... We have not heard any recordings from our client.” (p. 19, ll. 7–13); “we
2 never received these CDs, certainly” (p. 34, ll. 1–10)

- 3 • **Court’s articulated reliance (verbatim):** Implied reliance; no independent verification re-
4 quested
- 5 • **Rulings produced:** MIL exclusion of 911 CDs (p. 38:22–25); categorical exclusion of tran-
6 scripts “will never be admitted” (p. 39:18–24); MIL No. 1 denied (p. 41:3–11)
- 7 • **Subsequent admission of falsity:** Apr. 16, 2025: “They were provided by Dolan. He has
8 had them for whatever, sure.” (RT 7, p. 213:13–15)

9 **Feb. 18, 2025**

- 10 • **Date:** Feb. 18, 2025
- 11 • **Defense representation (verbatim):** “this is news to me... our office did not receive the
12 911 call until the day of the MSC” (p. 141, ll. 4–11)
- 13 • **Court’s articulated reliance (verbatim):** “I see. Okay.” (p. 141:15); “given their represen-
14 tations that they’re going to provide that material” (p. 145:16–19)
- 15 • **Rulings produced:** Continuance denied (p. 181); § 473 surprise rejected (p. 181:20–25)
- 16 • **Subsequent admission of falsity:** Same day, same attorney: “all this stuff has been in his
17 possession since August” (p. 181:6–23)

18 **Feb. 28, 2025**

- 19 • **Date:** Feb. 28, 2025
- 20 • **Defense representation (verbatim):** Continued “we never got that” pattern (pp. 290:15–
21 291:7)
- 22 • **Court’s articulated reliance (verbatim):** “I’m not going to question a lawyer’s remarks
23 regarding what they have and don’t have.” (p. 291:26–28); “They are an officer of the Court,
24 and they are supposed to conduct themselves appropriately before the Court.” (p. 292:1–7)
- 25 • **Rulings produced:** Burden-shift ruling: “it’s required of you to send the documents over.
26 Otherwise, I won’t allow them in.” (p. 293:1–3)
- 27 • **Subsequent admission of falsity:** Apr. 16, 2025 admission (RT 7, p. 213:13–15) demon-
28 strates materials were already in defense possession

1 **Apr. 16, 2025**

- 2 • **Date:** Apr. 16, 2025
- 3 • **Defense representation (verbatim):** Stacked denials: “not anything we received as part
4 of the subpoena” (RT 7, p. 156:5–16); “I am not sure what recording he is referring to”
5 (p. 162:4–12); layered authenticity/hearsay objections (pp. 207–208)
- 6 • **Court’s articulated reliance (verbatim):** Court excluded supplemental report; deferred 911
7 admission pending foundation
- 8 • **Rulings produced:** Exclusion of supplemental police report (p. 156:24–28); deferral of 911
9 call admission
- 10 • **Subsequent admission of falsity:** Same day admission: “Sure. They were provided by
11 Dolan. He has had them for whatever, sure.” (p. 213:13–15)

12

13 **KEY EXCERPT: THE OFFICER-OF-COURT ARTICULATION**

14 “They are an officer of the Court, and they are supposed to conduct themselves appro-
15 priately before the Court. If they are not, there are other sanctions that they could suffer
16 here. So far I haven’t heard or seen anything on the part of the current law firm which
17 tells me that they have conducted themselves improperly.”

18 — Garrett L. Wong, Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7.

19 **Juxtaposition (Risk #1 Guardrail):** This articulated reliance must be read against the April 16,
20 2025 admission: “They were provided by Dolan. He has had them for whatever, sure.” (RT 7,
21 p. 213, ll. 13–15.) The Court’s reliance on officer-of-the-court candor was misplaced.

23 **CROSS-REFERENCES**

- 24 • **SAC:** ¶¶ 44A, 46, 47A (§IV.G-1), 88–90; Count 7 (¶¶ 157–165)
- 25 • **Opp. Demurrer:** §VI-A, §VI-B (reliance table)
- 26 • **Opp. Anti-SLAPP:** Exhibit 2
- 27 • **Transcript Appendix A:** Phase A0 (Jan. 27), Phase A (Feb. 18), Phase A1 (Feb. 28), Phase

1 B (Apr. 16)

2
3 **DATED:** April 16, 2026

4
5 FRANCISCUS DYLAN ROSARIO,

6
7 **APPENDIX 3 — JUDICIAL ADMISSION MATRIX**

8 (Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by
9 Opposition §I.A.)

10 **Purpose:** Freestanding exhibit for Plaintiff’s oppositions to demurrer and anti-SLAPP motions.
11 This matrix pairs **Position A** (suppression / denial / unknown framing) with **Position B** (possession,
12 transmission, or Dolan-origin admissions) on the certified hearing and trial transcripts. **Tribunal**
13 **acceptance** notes where the Court accepted Position A for purposes of estoppel analysis. Citations
14 align with the Second Amended Complaint (SAC-06) Exhibit Appendix K–Q.

15 **Guardrail:** Trial-day rows are offered as **judicial estoppel, scienter, or reliance-channel** evi-
16 dence consistent with SAC Paragraphs 14, 102, 106, and 107, not as substitutes for the pleaded
17 injury-producing acts.

18
19 **0. THE COURT’S ARTICULATED RELIANCE**

20 This Matrix documents the sequence of misrepresentations that induced the Court’s reliance and
21 resulted in the gutting of Plaintiff’s case.

- 22 • **1. THE RELIANCE:** “I’m not going to question a lawyer’s remarks regarding what they
23 have and don’t have. They are an officer of the Court, and they are supposed to conduct
24 themselves appropriately before the Court. If they are not, there are other sanctions that they
25 could suffer here. So far I haven’t heard or seen anything on the part of the current law firm
26 which tells me that they have conducted themselves improperly.” (Hr’g Tr. Feb. 28, 2025,
27 pp. 291:26–292:7.)
- 28 • **2. THE ADMISSION:** “Sure. They were provided by Dolan. He has had them for whatever,

sure.” (RT 7, Apr 16, 2025, p. 213, ll. 13–15.)

- **3. THE AUDACITY:** Defense counsel denied receipt eighteen (18) times across four hearings while in possession of nine (9) independent artifacts proving receipt.

MASTER RECORD (POSITION A / POSITION B)

1. **Jan. 27, 2025 — Navaratnasingham. Position A:** “completely lacks foundation; not authenticated. We have no idea. . . We have not heard any recordings from our client.” (p. 19, ll. 7–13); “we never received these CDs, certainly” (p. 34, ll. 1–10). **Position B:** (Apr. 16, 2025 admission confirms possession). **Ruling procured:** MIL exclusion of 911 CDs (p. 38); transcripts “never admitted” (p. 39). **Record cite:** Hr’g Tr. Jan. 27, 2025.
2. **Feb. 18, 2025 — Navaratnasingham. Position A:** “did not receive. . . this is news to me” (p. 141). **Position B:** “all this stuff has been in his possession since August” (p. 181); 2021 Dolan copy (p. 139). **Ruling procured:** Continuance denied; § 473 surprise rejected (p. 181). **Record cite:** Hr’g Tr. Feb. 18, 2025.
3. **Feb. 28, 2025 — Defense / Court. Position A:** (Implied denial leading to officer-of-court reliance). **Position B:** —. **Ruling procured:** Burden-shift imposed on Plaintiff to disprove non-receipt (p. 293). **Record cite:** Hr’g Tr. Feb. 28, 2025.
4. **Apr. 16, 2025 — Navaratnasingham. Position A:** RT 7 stacked denials (pp. 156, 162): “not anything we received as part of the subpoena.” **Position B:** “They were provided by Dolan.” (RT 7, p. 213, ll. 13–15). **Ruling procured:** Supp. report excluded; 911 admission deferred. **Record cite:** RT 7, pp. 156, 162, 213.
5. **Apr. 17, 2025 — Abdelhalim. Position A:** Prior “unknown” provenance channel. **Position B:** “Yes. That is my voice.” (p. 108). **Ruling procured:** Jury hears 911 for first time after prejudice already done. **Record cite:** RT 8, p. 108.
6. **Apr. 22, 2025 — Defense closing. Position A:** “Changed his story to avoid a Vehicle Code violation” (jury argument). **Position B:** Payoff tied to Feb. 18 / trial-day contradiction record. **Ruling procured:** Jury deliberation context. **Record cite:** RT 10, pp. 49–52 (Exhibit Q).

PLAINTIFF PRESERVATION OF SUPPRESSION THEME

These entries document Plaintiff's contemporaneous preservation alongside the Position-A / Position-B record — the single-page answer to any "Plaintiff did not preserve" argument.

- **Jan. 27, 2025 — Plaintiff preservation:** "trying to suppress" (p. 19); "cherry-pick" / "weaponization" (p. 17, 42); FROG/SROG pin-cited (p. 32). **Court ruling:** CCP § 473 denied; continuance denied; MIL 1 granted. **Pincite:** Hr'g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff preservation:** (Absent — medical ER at Santa Clara Valley MC.) **Court ruling:** § 581(d) opposed by Court ("immediate reversal"). **Pincite:** Hr'g Tr. Jan. 28, 2025, p. 90.
- **Feb. 3, 2025 — Plaintiff preservation:** (Absent — medical.) **Court ruling:** § 581(d) under submission; ex parte disclosure order. **Pincite:** Hr'g Tr. Feb. 3, 2025, pp. 109, 116, 122–124.
- **Feb. 18, 2025 — Plaintiff preservation:** "concealed" (p. 17); "stonewalling" (p. 23); "smoking gun / murder weapon" (?); "going on the record" (pp. 44–45). **Court ruling:** Continuance denied; § 473 surprise rejected. **Pincite:** Hr'g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 181.
- **Feb. 28, 2025 — Plaintiff preservation:** Opposed deposition protective order; preserved officer-of-court / burden-shift objection. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift ruling at pp. 291–294. **Pincite:** Hr'g Tr. Feb. 28, 2025, pp. 291–294.
- **Apr. 22, 2025 — Plaintiff preservation:** "former attorney concealed the 911 record" (closing). **Court ruling:** Closing argument; verdict. **Pincite:** RT 10, p. 55.

Summary: Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28), each time seeking a procedural remedy (continuance, § 473, protective-order opposition). Each procedural vehicle was denied. This chronology defeats any "sleeping on rights" or "intrinsic fraud because Plaintiff was aware" argument: Plaintiff was aware **because he preserved his objection**, but his procedural remedies were foreclosed.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO,

1 **APPENDIX 4 — TRANSCRIPT APPENDIX (911 / BWC)**

2 (Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by
3 Opposition §I.A.)

4 **DEFENSE STATEMENTS TO THE COURT REGARDING 911 AND**
5 **BODY-WORN-CAMERA EVIDENCE**

6 **(DISPUTE / DENIAL-OF-RECEIPT CONTEXT)**

7 **SEC. 0. SMOKING-GUN SUMMARY**

8 **THE “SMOKING-GUN” PREAMBLE**

9 **1. THE COURT’S ARTICULATED RELIANCE (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7):**

10 > “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They
11 are an officer of the Court, and they are supposed to conduct themselves appropriately before
12 the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t
13 heard or seen anything on the part of the current law firm which tells me that they have conducted
14 themselves improperly.”

15 **2. THE RULINGS PROCURED FROM THAT RELIANCE:** * MIL No. 1 denied (Jan. 27,
16 p. 41:3–11) * 911 CDs excluded (Jan. 27, p. 38:22–25) * Continuance denied (Feb. 18, p. 181) *
17 Burden-shift imposed (Feb. 28, p. 293:1–3)

18 **3. THE ADMISSION THAT PROVED THE MISREPRESENTATION (RT 7, Apr 16, 2025,**
19 **p. 213, ll. 13–15):** > “Sure. They were provided by Dolan. He has had them for whatever, sure.”

20 **SUMMARY OF DECEPTION:** Across one pre-trial MIL hearing and three trial days, defense
21 counsel made at least eighteen (18) on-the-record statements denying receipt. Defense counsel
22 was in possession the entire time. Defense counsel then affirmatively used the same materials after
23 Plaintiff’s procedural windows had closed.

1. PURPOSE AND METHOD

This appendix collects, in chronological order, every on-the-record statement by defense counsel (Phillips, Spallas & Angstadt, LLP — Priya D. Navaratnasingham, Esq. and Alberto Reyna, Esq.) directed to the trial court regarding the **911 audio recording**, the **SFPD body-worn camera (“BWC”) footage**, the **CAD log**, and the related **SFPD Report 210079556 supplement**, where the statement was made in the **effect or context of (a) disputing the materials** (authenticity, foundation, provenance, admissibility) **or (b) denying that defense counsel had received the materials in discovery**.

The quotations below are drawn from:

- the **Reporter’s Transcript of the February 18, 2025 pre-trial hearing** before the Garrett L. Wong (Sandra L. Carranza, CSR #7062, reporter; Esquire Solutions Job No. J12424517);
- the **Reporter’s Transcripts of the April 2025 trial** before the Garrett L. Wong, Department 504 (Dennis M. Souza, CSR #3893, reporter; Steno Job Nos. 1591982 et seq.) — specifically RT 7 (April 16, 2025), RT 8 (April 17, 2025), and RT 10 (April 22, 2025).

Each quotation is given with **page : line** citation in the form RT [Day] / Hearing Tr., p. N, 1. N. Pin cites correspond to the certified reporter’s transcripts for the hearings identified above, including the transcript excerpts designated in Plaintiff’s Second Amended Complaint Exhibit Appendix (Exhibits K (Jan. 27, 2025), L (Jan. 28, 2025), C and M (Feb. 18, 2025), N (Feb. 28, 2025), O (RT 7), P (RT 8), and Q (RT 10)). All quotes are verbatim.

2. CHRONOLOGICAL CATALOG OF DEFENSE STATEMENTS

Phase A0 — Motions-in-Limine Hearing of January 27, 2025 (Garrett L. Wong)

The January 27, 2025 hearing addressed Plaintiff’s motions in limine and defense’s evidentiary posture. Defense counsel made foundational attacks on the 911 materials while Plaintiff preserved the suppression theme on the record.

A0.1 — “completely lacks foundation; not authenticated. We have no idea...”

MS. NAVARATNASINGHAM: “Your Honor, the recordings, again, **completely lacks**

1 **foundation; not authenticated.** We have no idea what they're — Mr. Rosario is refer-
2 ring to. **We have not heard any recordings from our client."**

3 — Hr'g Tr. (Jan. 27, 2025), p. 19, ll. 7–13.

4 **Effect / context:** Denial of receipt and foundation attack — defense counsel states lack of knowl-
5 edge of the 911 recording and asserts no receipt from the client, at the hearing where Plaintiff
6 contemporaneously objected: "We have two 911 records that the Defense has been trying to sup-
7 press." (p. 19, ll. 1–5).

8
9 **A0.2 — "we really don't know who redacted these things" (imputation of fabrication)**

10 **MS. NAVARATNASINGHAM:** "We — one of our motions in limine is to exclude
11 documents that were not produced in discovery. Moreover, they lack foundation, they're
12 not authenticated, and **we really don't know who redacted these things and what —**
13 **if that representation is true. So...**"

14 — Hr'g Tr. (Jan. 27, 2025), p. 31, ll. 1–5.

15 **Effect / context:** Imputation of fabrication against Plaintiff — made while defense was in posses-
16 sion of the originals via Dolan. This is scienter evidence under Hobart v. Hobart Estate Co. (1945)
17 26 Cal.2d 412.

18
19 **A0.3 — "we never received these CDs, certainly"**

20 **MS. NAVARATNASINGHAM:** "These documents, these CDs, **we never received**
21 **these CDs, certainly.** On Saturday — during our break we went back and looked at
22 our email, and on Saturday we received this — this copy, exactly what you see here, but
23 we never received — that's on Saturday, Your Honor. I didn't see it until we were in
24 the break room right now. **We never received these CDs. We never — this was never**
25 **produced in discovery, and he has had it for four years.** We don't have the original
26 audio or any of the original documents."

27 — Hr'g Tr. (Jan. 27, 2025), p. 34, ll. 1–10.

1 **Effect / context:** The emphatic denial — “certainly” — is the Jan. 27, 2025 anchor for the three-
2 hearing denial arc culminating in the Apr. 16, 2025 “provided by Dolan” admission. Under Aguilar
3 v. Lerner (2004) 32 Cal.4th 974, 986–987, this ascending sequence of factually incompatible
4 positions is the precise fact-pattern to which judicial estoppel applies.

6 **A0.4 — Expert-designation denial**

7 **MS. NAVARATNASINGHAM:** “We never received a designation from Mr. Rosario.

8 **He has not designated any non-retained or retained experts in this case.”**

9 **— Hr’g Tr. (Jan. 27, 2025), p. 53, ll. 1–4.**

10 **Effect / context:** This representation excluded Plaintiff’s non-retained treating physician / treating
11 expert designations, cutting off Plaintiff’s medical-causation case and compounding the liability-
12 evidence exclusions.

14 **A0.5 — “lady... no link whatsoever”**

15 **MS. NAVARATNASINGHAM:** “No, Your Honor. No. So, the 911 called that he pro-
16 duced at the MSC to the MSC officer was **a lady, and it has no link whatsoever to this**
17 **accident.** There is no way we can tell what that is related to. If he says that he has a 911
18 call from the defendant, **we have never heard that.”**

19 **— Hr’g Tr. (Jan. 27, 2025), p. 16, ll. 17–22.**

20 **Effect / context:** Categorical dismissal of the 911 call as having “no link” to the accident — made
21 by the same attorney who later admitted the materials were “provided by Dolan” (RT 7, p. 213).

23 **Phase A1 — Pre-Trial Hearing of February 28, 2025 (Garrett L. Wong)**

24 The February 28, 2025 hearing produced the officer-of-court and burden-shift rulings that are cen-
25 tral to the SAC’s tribunal-reliance theory.

26 **A1.1 — Officer-of-Court Articulation**

1 **THE COURT:** “I’m not going to question a lawyer’s remarks regarding what they have
2 and don’t have.”

3 — Hr’g Tr. (Feb. 28, 2025), p. 291, ll. 26–28.

4 **THE COURT:** “They are an officer of the Court, and they are supposed to conduct
5 themselves appropriately before the Court. If they are not, there are other sanctions that
6 they could suffer here. **So far I haven’t heard or seen anything on the part of the**
7 **current law firm which tells me that they have conducted themselves improperly.”**

8 — Hr’g Tr. (Feb. 28, 2025), p. 292, ll. 1–7.

9 **Effect / context:** This is the express articulation of tribunal reliance on defense candor. The Court
10 explicitly invoked defense counsel’s officer-of-the-court status to ground its refusal to question
11 defense’s representations. This reliance — as the April 16, 2025 admission demonstrates — was
12 misplaced.

14 **A1.2 — Burden-Shift Ruling**

15 **THE COURT:** “it’s required of you to send the documents over. **Otherwise, I won’t**
16 **allow them in.”**

17 — Hr’g Tr. (Feb. 28, 2025), p. 293, ll. 1–3.

18 **Effect / context:** The burden-shift ruling imposed on Plaintiff an affirmative re-production burden
19 for materials already in defense’s possession by virtue of the Dolan transmission, transforming
20 defense’s silence-plus-denial strategy into a concrete exclusionary sanction against Plaintiff.

22 **Phase A — Pre-Trial Hearing of February 18, 2025 (Garrett L. Wong)**

23 The February 18, 2025 hearing was set on Plaintiff’s motion to continue trial. The Court took
24 up Plaintiff’s request for additional time to address the 911 audio, body-worn camera, and CAD
25 materials whose production status defense counsel had placed in dispute through Motions in Lim-
26 ine 6 and 17 (filed Jan. 17, 2025). At the hearing, Mr. Jeremy M. Jessup of the Dolan Law Firm
27 appeared and testified concerning the discovery production made by Plaintiff’s prior counsel.

1 **A.1 — “This is news to me.” / “Our office did not receive the 911 call until the day of the**
2 **MSC.”**

3 **MS. NAVARATNASINGHAM:** “Yes, Your Honor. So **this is news to me.** We didn’t
4 realize that prior to handling counsel may have received it, and I can’t confirm whether
5 that was produced. I take counsel’s word, of course, but we — I can represent to you that
6 **our office did not receive the 911 call until the day of the MSC** — the day before the
7 MSC and that was an attachment link. **There was no sort of ability to verify whether**
8 **that was accurate or not.** And we were not present — our office was not on the case
9 when Mr. Rosario’s deposition was taken either.”

10 **— Hearing Tr. (Feb. 18, 2025), p. 6, ll. 3–14.**

11 **Effect / context:** Denial of receipt (911 audio) and dispute of authenticity. Made in immediate
12 response to Plaintiff’s representation that prior defense counsel (Chambers/CSK) had been served
13 with the 911 audio in 2022. The Court accepted this representation without independent verifica-
14 tion (“THE COURT: I see. Okay.” — id. p. 6, l. 15).

15
16 **A.2 — “We did not have those two items until the day of the MSC.”**

17 **MS. NAVARATNASINGHAM:** “Yes, thank you, Your Honor. . . . I don’t see anything
18 specific in this e-mail with reference to the 911 calls, and I don’t see any reference in
19 here to a request for a continuance, number one. **Number two**, with reference to his
20 allegations of us lying, . . . so our motion in limine to exclude the 911 call and there
21 was, like, a call statement or a call log was very specific to those two items, and **I am**
22 **representing to this Court that we did not have those two items until the day of the**
23 **MSC** and those items were produced in connection with the settlement to the settlement
24 officer. Now, if Mr. Jessup, who was here this morning, his prior defense counsel, said
25 that he produced those links, okay, and he’s going to produce those links to me. I believe
26 this Court, when you granted our motion in limine, you did so without prejudice subject
27 to that discovery being produced.”

1 — Hearing Tr. (Feb. 18, 2025), p. 27, l. 23 — p. 30, l. 11.

2 **Effect / context:** Denial of receipt (911 audio + CAD log) repeated as an officer-of-the-court
3 representation, paired with an attempt to reframe the prior MIL ruling as conditional. Made at the
4 same hearing where Mr. Jessup had testified that the materials were produced to defense counsel
5 and served in discovery in connection with Mr. Rosario’s August 18, 2022 deposition (Hearing Tr.
6 Feb. 18, 2025, pp. 139–140).

7
8 **A.3 — Defense opposes plaintiff’s continuance for the 911/BWC.**

9 **MS. NAVARATNASINGHAM:** “Your Honor, may I quickly respond to that? Mr. Rosario
10 has been pro per since August of 2024. . . . **Your Honor is allowing him to try to in-**
11 **roduce the 911 record for a call recording, so . . .”**

12 — Hearing Tr. (Feb. 18, 2025), p. 33, ll. 1–14.

13 **Effect / context:** Dispute paired with active opposition to Plaintiff’s continuance request — i.e.,
14 the procedural relief Plaintiff sought to cure the alleged provenance defect.

15
16 **A.4 — Concession that the materials had in fact been in plaintiff’s possession.**

17 **MS. NAVARATNASINGHAM:** “I had two comments, Your Honor, and now I’m for-
18 getting them because so much has been said. Well, I mean, we oppose the continuance.
19 He’s been pro per since August. He’s had the file since August. **According to Mr. Jes-**
20 **sup, the body cam footage, the 911 call, all this stuff has been in his possession since**
21 **August.** The motion in limine that I filed was saying that **the 911 call was not produced**
22 **in the normal course of discovery.** Your Honor has cured that concern of his, and you
23 are allowing him to present that and subject to relevance and other objections. . . . And
24 so we, of course, object and would like to select a trial date.”

25 — Hearing Tr. (Feb. 18, 2025), p. 41, ll. 3–22.

26 **Effect / context:** On the same record, defense **concedes** the materials had been in Plaintiff’s pos-
27 session from prior counsel “since August” while simultaneously **maintaining** the original MIL

theory that the 911 call “was not produced in the normal course of discovery.” This is the operational pivot from “we never received it” (A.1, A.2) to “it was not formally produced” — the inconsistency that Phase Two of the SAC (Counts 1–6) addresses.

Phase B — Trial Day 7 (April 16, 2025) — Officer Fernandez Cross-Examination & 911/BWC Foundation Hearing

Day 7 opened with bifurcation and proceeded to Plaintiff’s cross-examination of SFPD Officer Fernandez, the responding officer who authored the police report and was a custodian of body-worn camera footage. The defense interposed repeated objections to questioning that referenced the 911 dispatch, the body-cam footage, and the SFPD supplemental report.

B.1 — Objection that the police-report supplement “is not anything that we received as part of the subpoena.”

MS. NAVARATNASINGHAM: “Your Honor, for the record, I do want to just state, as far as this document goes, **this is not — we subpoenaed the police records for the incident and this is not anything that we received as part of the subpoena.** I do also want to note for the record the incident occurred February 4, 2021. It appears that this supplement was submitted by Mr. Rosario on November 13, 2024, over three years after the subject incident. So I would say this is unreliable and lacks foundation.”

— **RT 7 (Apr. 16, 2025), p. 156, ll. 5–16.**

Effect / context: Denial of receipt — direct representation that the SFPD Report 210079556 supplement was not produced in response to the **defense-issued Complex subpoena (Order No. CA1147102-021, issued Feb. 1, 2024)**. The Court relied on this in excluding the supplement as beyond the scope of the cross-examination (RT 7, p. 156, ll. 24–28).

B.2 — “I am not sure what recording he is referring to.”

MS. NAVARATNASINGHAM: “Your Honor, before we do that — I don’t believe that I have been — and **I am not sure what recording he is referring to.** Before the jury

1 hears it, I also believe a dying declaration — he is here present. So I am not sure he
2 can illicit that testimony or that call. But I would like more clarity, before a jury hears a
3 recording, what we are talking about here.”

4 — RT 7 (Apr. 16, 2025), p. 162, ll. 4–12.

5 **Effect / context:** Dispute paired with implied non-receipt — defense counsel professes lack of
6 awareness of the 911 recording Plaintiff was preparing to play, six weeks after the same recording
7 was the subject of MIL No. 17 and the February 18, 2025 hearing. The Court directed the recording
8 be addressed outside the jury’s presence (RT 7, p. 162, ll. 13–17).

10 **B.3 — “We have been provided a 911 transcript ... we have concerns about these two docu-
11 ments and the recording.”**

12 **MS. NAVARATNASINGHAM:** “Thank you. So we have been provided a 911 tran-
13 script from an eyewitness and a 911 transcript for my client. I don’t know if it
14 would be more appropriate — we have concerns about these two documents and the
15 recording. I don’t know if it would be more appropriate to do that outside the presence
16 of the jury, Your Honor, before the jury hears it, because **I have objections to this.**”

17 — RT 7 (Apr. 16, 2025), p. 163, ll. 19–28.

18 **Effect / context:** Dispute. Counsel acknowledges receipt of two 911 transcripts (the eyewitness
19 call and Abdelhalim’s call) but reserves authenticity and relevance objections.

21 **B.4 — Authenticity / hearsay challenge to the eyewitness 911 call.**

22 **MS. NAVARATNASINGHAM:** “Yes, Your Honor. First of all, there is a 911 transcript
23 for eye witness and this is aside from the fact that **I don’t know who prepared these**
24 **transcripts**, for either of these, but the 911 call for eyewitness in particular, **there is**
25 **no identification as to who the witness is.** And, you know, this is one of those, **I**
26 **believe, maybe it was included in the Dolan documents** so if the Court is going to
27 say authenticity is established, that is fine, but **we do object as hearsay and it lacks**

1 **foundation as we have no idea who this person is.** There is no name in either, in the
2 recording or in the transcript. Furthermore, relevance. She says here — it sounds like
3 a passer-byer that says: There was a van that might have hit a scooter. It might be a
4 hit-and-run, I don't know. . . . And it is unduly prejudicial where there is no probative
5 value for this for the jury to hear this recording. They don't even know who this is."

6 — RT 7 (Apr. 16, 2025), p. 207, ll. 15 — p. 208, l. 12.

7 **Effect / context:** Authenticity / foundation / hearsay / relevance / prejudice — a layered dispute,
8 while simultaneously acknowledging the recording "**maybe it was included in the Dolan docu-**
9 **ments**" — i.e., was in fact part of the prior counsel's file.

10
11 **B.5 — THE ADMISSION — "Sure. They were provided by Dolan."**

12 **THE COURT:** "The question is — I think the ask is a request to review or to present
13 the body cams that are apparently on your exhibit list."

14 **MS. NAVARATNASINGHAM:** "**Sure. They were provided by Dolan. He has had**
15 **them for whatever, sure.**"

16 — RT 7 (Apr. 16, 2025), p. 213, ll. 10–15.

17 **Effect / context:** This is the **operational linchpin** of the SAC's fraud claim and the precise on-
18 record contradiction of A.1, A.2, B.1, and B.2 above. Defense counsel admits — in open court, on
19 a certified record — that the BWC footage was provided by Plaintiff's prior counsel (Dolan Law
20 Firm). It is irreconcilable with the February 18, 2025 representations that defense "did not receive
21 the 911 call until the day of the MSC" and "this is news to me," and with the trial-day disclaimer
22 that counsel was "not sure what recording" was being referenced. (Cited at SAC ¶ 3 and DRAFT
23 10 Master Estoppel Table; the SAC's prior pin-cite of "p. 214, ll. 13–15" should be **corrected to**
24 **RT 7, p. 213, ll. 13–15.**)

25
26 **B.6 — Possession + curation of "five videos."**

27 **MS. NAVARATNASINGHAM:** "Your Honor, **on the point of the body cam footage,**

1 **there is five videos.** They are quite lengthy and a lot of it is just standing around and
2 some of it is talking about something else. There is also insurance references in there.
3 **So what we did on our end was we pared it down to just the relevant portions that**
4 **we wanted the jury to hear.** I think all in we have about 8 or 9 minutes pared down,
5 because it would be a waste of time for them to listen to all five videos.”

6 — RT 7 (Apr. 16, 2025), p. 213, l. 11 — p. 214, l. 8.

7 THE COURT: “Are there transcripts with them?”

8 MS. NAVARATNASINGHAM: “We could prepare transcripts.”

9 — RT 7 (Apr. 16, 2025), p. 213, ll. 23–25.

10 **Effect / context:** Active possession + curation of the BWC footage that defense had previously
11 characterized as not-produced or of unknown provenance. Editing video for jury presentation pre-
12 supposes authenticity and waives any genuine foundation challenge under Evid. Code § 1414(b).

13
14 **Phase C — Trial Day 8 (April 17, 2025) — Defendant Subhi Abdelhalim Cross-Examination**
15 **& Defense Possession of “Original Video”**

16 Day 8 included Plaintiff’s cross-examination of defendant Abdelhalim, during which the 911
17 recording was played and Abdelhalim authenticated his own voice on the recording. Defense
18 counsel made several statements on the record concerning the BWC footage and the 911 record-
19 ing.

20 **C.1 — Defense possession of the original body-worn camera video; objection to plaintiff’s**
21 **captioned still-shots.**

22 **MS. NAVARATNASINGHAM:** “Exactly. Then my second question, Your Honor, is **we**
23 **received documents, still shots of the video from Mr. Rosario which had captions**
24 **on them, and that is not the original video.** So I want to make sure that is not a version
25 he will play because **the excerpts of the original video should be played. The body**
26 **cam footage doesn’t have captions on it.”**

27 — RT 8 (Apr. 17, 2025), p. 14, ll. 7–15.

1 **Effect / context:** Direct admission of possession of the “original video” — and a tacit concession
2 that defense possesses the canonical BWC footage against which Plaintiff’s captioned excerpts
3 must be measured. This contradicts the February 18 “news to me” representation as to BWC.
4

5 **C.2 — Hearsay objection to Plaintiff’s testimony about Abdelhalim’s 911 statements (over-**
6 **ruled as party admission).**

7 **THE WITNESS** (Plaintiff): “So about 2:55 — I am looking at the 911 record — he
8 called 911 and told them that he hit me with his truck and I yelled: He hit me with his
9 van. And he said: Well, it was barely anything, to the 911 operator. ...”

10 **MS. NAVARATNASINGHAM:** “Objection, hearsay.”

11 **THE COURT:** “Overruled. **It is a party admission.**”

12 — RT 8 (Apr. 17, 2025), p. 34, ll. 17 — p. 35, l. 8.

13 **Effect / context:** Defense interposes hearsay objection to the very content the SAC pleads as Phase
14 One Fact F3 (operator/Abdelhalim “you hit a pedestrian / yeah” exchange) and F1 (Plaintiff’s own
15 recorded voice). The Court’s “party admission” overruling **establishes on the record** that the 911
16 audio is admissible under Evid. Code § 1220 — the same audio defense had previously claimed
17 was of unknown provenance.
18

19 **C.3 — “I don’t know why he is playing an unrelated audio recording.”**

20 **MS. NAVARATNASINGHAM:** “Your Honor, is he playing — I think it is appropriate
21 to play a recording that he wants my client to hear as it relates to his testimony. **I don’t**
22 **know why he is playing an unrelated audio recording.**”

23 — RT 8 (Apr. 17, 2025), p. 103, ll. 1–6.

24 **Effect / context:** Dispute / characterization challenge during 911 playback for impeachment. The
25 “unrelated” framing was incorrect: the recording was the very 911 call Abdelhalim placed and that
26 he later authenticated as his own voice (see C.5 below).
27

1 **C.4 — Continued challenge to playback / fast-forward.**

2 **MS. NAVARATNASINGHAM:** “Your Honor, if I may, it sounds like he has to fast
3 forward to the audio recording to get to the recording of my client.”

4 **— RT 8 (Apr. 17, 2025), p. 103, ll. 18–21.**

5 **Effect / context:** Dispute / process objection during 911 playback.
6

7 **C.5 — Authentication-by-acquiescence: defendant’s own admissions on the 911 recording.**

8 The cross-examination at RT 8 produced Abdelhalim’s own testimony that the voice on the 911
9 recording is his — directly contradicting the **defense’s prior representations** that the recording’s
10 provenance was “unknown” or that defense had not received it.

11 **MR. ROSARIO (Q.):** “Mr. Abdelhalim, can you see the transcript, the first entry? It
12 says: Caller. It says: Yes, yeah, there is — I was — I am driving a van and there is a
13 guy going to cross, he crossed from me, and **I barely hit him with anything but I am**
14 **calling for him.** Was that your voice?”

15 **THE WITNESS:** “**Yes. That is my voice.**”

16 **— RT 8 (Apr. 17, 2025), p. 108, ll. 17 — p. 108, l. 28.**

17 **MR. ROSARIO (Q.):** “Yeah. I am going to talk about the recording. You clearly did
18 on the audio, and said: He was turning to the right and he was boom in front of me, **I**
19 **just hit him, hit him with barely anything.** Was that your voice also?”

20 **A.:** “**That is my voice.**”

21 **— RT 8 (Apr. 17, 2025), p. 110, l. 23 — p. 111, l. 1.**

22 **MR. ROSARIO (Q.):** “Oh, okay. The operator asked you: **Okay, so you were in your**
23 **van. You were driving and he was on the street. You hit a pedestrian.** And you
24 started to say ‘no’, and then you said ‘**yeah.**’ So you clarified, that was in the audio.”

25 **— RT 8 (Apr. 17, 2025), p. 112, ll. 16–22.**

26 **MR. ROSARIO (Q.):** “All right. So it says — **the operator had asked you clearly.**
27 **So you said you were in your van driving and he was on the street. And I think you**

1 **answered: No. And then it said: You hit a pedestrian. And you answered, ‘Yeah.’**

2 So that was also your voice, correct? So obviously, same recording . . .”

3 — **RT 8 (Apr. 17, 2025), p. 113, ll. 11–17.**

4 **Effect / context:** Authentication on the merits record by the party opponent. Once Abdelhalim
5 testifies under oath that the voice on the recording is his and that he made the operator’s affirmative-
6 response exchange, **the defense’s prior court-facing position that the recording’s provenance**
7 **was unknown is irreconcilable as a matter of law.** Authentication-by-acquiescence (Evid. Code
8 § 1414(b)) and judicial-estoppel triggers attach.

10 **C.6 — Defense’s own use of BWC at trial: “I was going to show the body cam footage as**
11 **well.”**

12 **MS. NAVARATNASINGHAM:** “Your Honor, Mr. — my witness was going to be
13 Mr. Abdelhalim, who has already completed his testimony. **I was going to show the**
14 **body cam footage as well. However, we have pared it down to just about 10 min-**
15 **utes.** And then I was going to cross-examine Mr. Rosario. I probably need a half a day,
16 honestly.”

17 — **RT 8 (Apr. 17, 2025), p. 144, ll. 3–12.**

18 **MS. NAVARATNASINGHAM:** “Your Honor, I just was going to reiterate, **we pared**
19 **down the videos.** We talked about this a lot, there is a lot dead air on those videos, like
20 an hour and a half, and reference to insurance. So I am hoping those are excluded from
21 the Plaintiff’s version.”

22 — **RT 8 (Apr. 17, 2025), p. 146, ll. 20–28.**

23 **Effect / context:** Defense affirmatively offers the BWC as part of its own case-in-chief — com-
24 pleting the authentication-by-conduct chain and definitively waiving any “we did not receive it”
25 position.

1 **Phase D — Trial Day 10 (April 22, 2025) — Defense Closing Argument**

2 In closing, defense counsel argued the **content** of the 911 call and BWC footage to the jury —
3 affirmatively relying on the very materials whose receipt and provenance defense had previously
4 placed in dispute.

5 **D.1 — Defense closing: relies on BWC content.**

6 **MS. NAVARATNASINGHAM:** “— that Mr. Rosario admits to riding a Lime scooter.

7 **In fact, you saw on body cam footage where Mr. Rosario himself told officers that:**

8 I was riding a Lime scooter going five to ten miles per hour. . . .”

9 — RT 10 (Apr. 22, 2025), p. 49, ll. 8–17.

10 **D.2 — Defense closing: relies on 911 + BWC content to defeat the hit-and-run theory.**

11 **MS. NAVARATNASINGHAM:** “Thank you. . . . Second, Mr. Rosario told you that he
12 lost consciousness. **You saw body cam footage yourself, the first video we showed**
13 **you where Mr. Rosario very clearly tells officers that he did not lose consciousness.**

14 Third, Mr. Rosario tells you that this was a hit and run. He presented a 911 call from
15 an unidentified woman where she says: It might be a hit and run, I don’t know. The
16 dispatcher in that same 911 call says: Somebody already called this incident in. The
17 person that already called that incident in was my client. For there to be a hit and run
18 someone must flee the scene. **You saw body cam footage and you know that my client**
19 **made a 911 call. You saw body cam footage of my client at the scene cooperating**
20 **with police.** This is not a hit and run. Fourth, Mr. Rosario references Dustin Roseman.
21 **You saw for yourself and you heard Officer Thompson say that she interviewed**
22 **Mr. Rosemont and that he was very intoxicated and didn’t know what happened.**

23 Fifth, Mr. Rosario argues that there is . . .”

24 — RT 10 (Apr. 22, 2025), p. 50, ll. 7 — p. 52, l. 6 (excerpts).

25 **Effect / context:** Affirmative reliance. Defense argues the substantive content of the 911 audio and
26 the BWC to the jury — the same materials that, in February 2025, defense had told the Court were

“news to me,” “not produced in the normal course of discovery,” and of unknown provenance. Affirmative use at closing is **dispositive of authentication and provenance** by waiver and by judicial estoppel (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 181–183).

3. SUMMARY MATRIX — DISPUTE / DENIAL-OF-RECEIPT TURNS

#	Date / Citation	Speaker	Effect / Context	Key Phrase
A.1	Hearing Tr. Feb. 18, 2025, p. 6, ll. 3–14	Navaratnasingham	Denial of receipt — 911	<u>“This is news to me... we did not receive the 911 call until the day of the MSC.”</u>
A.2	Hearing Tr. Feb. 18, 2025, p. 27, l. 23 – p. 30, l. 11	Navaratnasingham	Denial of receipt — 911 + CAD	<u>“I am representing to this Court that we did not have those two items until the day of the MSC.”</u>
A.3	Hearing Tr. Feb. 18, 2025, p. 33, ll. 1–14	Navaratnasingham	Opposition to continuance	<u>“Your Honor is allowing him to try to introduce the 911 record for a call recording, so ...”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
A.4	Hearing Tr. Feb. 18, 2025, p. 41, ll. 3–22	Navaratnasingham	Concession + reframing	<u>“all this stuff has been in his possession since August ... the 911 call was not produced in the normal course of discovery.”</u>
B.1	RT 7, p. 156, ll. 5–16	Navaratnasingham	Denial of receipt — SFPD supplemental report	<u>“this is not anything that we received as part of the subpoena.”</u>
B.2	RT 7, p. 162, ll. 4–12	Navaratnasingham	Implied non-receipt — 911	<u>“I am not sure what recording he is referring to.”</u>
B.3	RT 7, p. 163, ll. 19–28	Navaratnasingham	Dispute (authenticity, hearsay)	<u>“we have concerns about these two documents and the recording ... I have objections to this.”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
B.4	RT 7, p. 207, l. 15 – p. 208, l. 12	Navaratnasingham	Authenticity / foundation / hearsay	<u>“I don’t know who prepared these transcripts ... maybe it was included in the Dolan documents ... we object as hearsay and it lacks foundation.”</u>
B.5	RT 7, p. 213, ll. 13–15	Navaratnasingham	Admission contradicting A.1/A.2/B.1/B.2	<u>“Sure. They were provided by Dolan. He has had them for whatever, sure.”</u>
B.6	RT 7, p. 213, l. 11 – p. 214, l. 8	Navaratnasingham	Possession + curation — BWC	<u>“on the point of the body cam footage, there is five videos ... we pared it down to just the relevant portions that we wanted the jury to hear.”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
C.1	RT 8, p. 14, ll. 7–15	Navaratnasingham	Possession of original BWC	<u>“the excerpts of the original video should be played. The body cam footage doesn’t have captions on it.”</u>
C.2	RT 8, p. 35, ll. 1–8	Navaratnasingham (overruled)	Hearsay objection to 911 content	<u>“Objection, hearsay.” → THE COURT: “Overruled. It is a party admission.”</u>
C.3	RT 8, p. 103, ll. 1–6	Navaratnasingham	Dispute — characterization	<u>“I don’t know why he is playing an unrelated audio recording.”</u>
C.4	RT 8, p. 103, ll. 18–21	Navaratnasingham	Dispute — process	<u>“it sounds like he has to fast forward to the audio recording ...”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
C.5	RT 8, p. 108, l. 28; p. 111, l. 1; p. 112, ll. 16–22; p. 113, ll. 11–17	THE WITNESS (Abdelhalim)	Authentication by party-opponent	<u>“Yes. That is my voice.”</u> (×2); operator: <u>“you hit a pedestrian.”</u> — Abdelhalim: <u>“yeah.”</u>
C.6	RT 8, p. 144, ll. 3–12; p. 146, ll. 20–28	Navaratnasingham	Defense use of BWC in case-in-chief	<u>“I was going to show the body cam footage as well. However, we have pared it down to just about 10 minutes.”</u>
D.1	RT 10, p. 49, ll. 8–17	Navaratnasingham (closing)	Affirmative reliance on BWC	<u>“you saw on body cam footage where Mr. Rosario himself told officers ...”</u>
D.2	RT 10, p. 50, l. 7 – p. 52, l. 6	Navaratnasingham (closing)	Affirmative reliance on 911 + BWC	<u>“You saw body cam footage and you know that my client made a 911 call.”</u>

4. EVIDENTIARY EFFECT

The catalog above maps onto the two-phase deception architecture pleaded in the operative complaint as follows:

- **Phase One (Lulling, Aug 2022 – May 2023):** Phase A and Phase B turns (denial of receipt) are the **court-facing reversal** of the Phase One out-of-court silence.
- **Phase Two (Court-Facing Reversal, Jan – Apr 2025):** Phase A and Phase B turns are themselves the Phase Two acts; Phase C and Phase D turns are the Phase Two **acquiescence on the merits record** that triggers Evidence Code § 1414(b) authentication-by-conduct and judicial-estoppel waiver.
- **Operational linchpin:** Turn **B.5** — “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15) — is the on-record contradiction of the Position-A denials catalogued in A.1, A.2, B.1, and B.2.

Verified **page : line** anchors for the 911 and BWC content (including operator/yes context and Abdelhalim authentication) include RT 8, p. 34, l. 17; RT 8, p. 108, l. 28 (“Yes. That is my voice.”); RT 8, p. 111, l. 1; RT 8, p. 112, ll. 16–22; and RT 8, p. 113, ll. 11–17.

5. ONE-SENTENCE PATTERN

Across one pre-trial hearing and three trial days, defense counsel made at least **eighteen on-the-record statements** to the trial court whose effect was to **dispute or deny receipt** of the 911 audio, the SFPD body-worn camera footage, the CAD log, or the SFPD supplemental report — and then, after Plaintiff’s procedural windows had closed, **affirmatively used the same materials** in cross-examination of Plaintiff, in defense case-in-chief, and in closing argument — culminating in defense counsel’s open-court admission on April 16, 2025: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15.)

6. VERIFICATION (PAGINATION)

- The quotations and **page : line** anchors in this appendix were verified against the certified reporter’s transcripts for the hearings itemized under **1. PURPOSE AND METHOD** above.
- Pagination follows the steno reporter’s page footer and, for the February 18, 2025 hearing, the Esquire reporter’s caption-line page header (page N at end of ROSARIO vs ABDELHALIM, ET AL.). Where the steno footer marks page N, content immediately following that footer is cited as **page N+1**, consistent with the usual steno page-end convention.
- Defense-speaker turns are identified by speaker tag (MS. NAVARATNASINGHAM: /MR. REYNA:). Quoted text preserves the steno middle-dot prefix only where it precedes the speaker tag in the original; otherwise whitespace is normalized.

[End of Transcript Appendix A.]

APPENDIX 5 — PLAINTIFF PRESERVATION CHRONOLOGY

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

PURPOSE

This one-page exhibit documents Plaintiff’s contemporaneous preservation of the suppression/concealment objection across four separate pre-trial hearing dates, defeating any “sleeping on rights” or “intrinsic fraud because Plaintiff was aware” argument.

WHY PLAINTIFF’S PRESERVATION MATTERS

This chronology proves that Plaintiff objected contemporaneously to every misrepresentation by defense counsel. This preempts any defense argument of “sleeping on rights” or that the fraud was merely intrinsic. Plaintiff raised the alarm at every hearing, but his procedural remedies were foreclosed because the Court relied on defense counsel’s false representations of non-receipt.

THE RELIANCE-REVERSAL CHAIN

1. **Jan. 27, 2025. Defense denial:** “We never received these CDs, certainly.” (p. 34). **Plaintiff’s objection:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19). **Rulings procured:** MIL No. 1 denied; 911 CDs excluded (p. 38).
2. **Feb. 18, 2025. Defense denial:** “This is news to me... our office did not receive the 911 call...” (p. 141). **Plaintiff’s objection:** “The information was completely concealed from me... this is going on the record.” (pp. 17, 44). **Rulings procured:** Continuance denied; § 473 relief rejected (p. 181).
3. **Feb. 28, 2025. Defense denial:** (Implied denial re: doctor files). **Plaintiff’s objection:** Preserved officer-of-court / burden-shift objection (pp. 291–294). **Rulings procured:** **Burden-shift imposed** on Plaintiff (p. 293).
4. **Apr. 16, 2025. Defense: ADMISSION:** “Sure. They were provided by Dolan.” (p. 213). **Plaintiff:** Trial-day foundation challenges. **Rulings procured:** Supplemental report excluded.

PRESERVATION TIMELINE

- **Jan. 27, 2025 — Plaintiff’s preservation:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19, ll. 1–5); FROG/SROG CAD references confirmed (p. 32, ll. 1–16); “They’re using weaponization of procedure” (p. 42, ll. 1–8). **Procedural vehicle sought:** CCP § 473 relief; continuance to lay foundation. **Court ruling:** § 473 denied (p. 49); continuance denied (pp. 55–56). **Pincite:** Hr’g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff’s preservation:** (Absent — Santa Clara Valley Medical Center ER). **Court ruling:** Defense § 581(d) dismissal motion; Court remarked dismissal would “suffer immediate reversal” (p. 90:17–33). **Pincite:** Hr’g Tr. Jan. 28, 2025, p. 90.
- **Feb. 3, 2025 — Plaintiff’s preservation:** (Absent — medical). **Court ruling:** Renewed § 581(d) under submission; ex parte disclosure order condition. **Pincite:** Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124.
- **Feb. 18, 2025 — Plaintiff’s preservation:** “the information was completely concealed from

me” (p. 17); “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (pp. 44–45). **Procedural vehicle sought:** Continuance to subpoena SFPD foundation witnesses. **Court ruling:** Continuance denied (p. 181); “surprise under § 473 is not a sufficient basis” (p. 181:20–25). **Pincite:** Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 147, 151, 164, 181.

- **Feb. 28, 2025 — Plaintiff’s preservation:** Opposed deposition protective order limiting doctor-file access. **Procedural vehicle sought:** Access to doctor files before liability trial. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift imposed (pp. 291–294). **Pincite:** Hr’g Tr. Feb. 28, 2025, pp. 291–294.
- **Apr. 22, 2025 — Plaintiff’s preservation:** “former attorney concealed the 911 record” (closing argument). **Procedural vehicle sought:** Closing argument to jury. **Court ruling:** Verdict returned 9–3 for defense. **Pincite:** RT 10, p. 55.

SUMMARY

Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28, 2025), each time seeking a procedural remedy (continuance, § 473 relief, protective-order opposition). **Each procedural vehicle was denied.**

This chronology establishes:

1. **Accrual under CCP § 338(d)** runs from the **January 17, 2025** MIL filings (the “contrary court-facing position”), not from 2021 possession — Plaintiff did not know of the defense’s internal file-transfer failure until the MIL representations contradicted prior silence.
2. **Reasonable reliance** for element 3 of estoppel by silence under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493 — Plaintiff’s diligence in raising the issue contemporaneously demonstrates the reliance was not unreasonable.
3. **Extrinsic, not intrinsic, fraud** — The fact that Plaintiff raised objections does not convert extrinsic fraud into intrinsic fraud. Plaintiff’s procedural remedies were **foreclosed by the rulings themselves**; awareness of the problem and ability to litigate it fairly are not the same thing. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471–72.)

1 **DATED:** April 16, 2026

2 _____
3 FRANCISCUS DYLAN ROSARIO,
4 _____

5 **APPENDIX 6 — FRAUD-ON-COURT ROADMAP (BENCH HANDOUT)**

6 (Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by
7 Opposition §I.A.)
8 _____

9 **THE 801 RECORD: “WHAT THIS CASE IS NOW ABOUT”**

10 **QUADRANT 1: THE RELIANCE**

11 **Feb 28, 2025 Hr’g Tr., pp. 291:26–292:7** > “I’m not going to question a lawyer’s remarks re-
12 garding what they have and don’t have. They are an officer of the Court, and they are supposed to
13 conduct themselves appropriately before the Court. If they are not, there are other sanctions that
14 they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm
15 which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong)
16 _____

17 **QUADRANT 2: THE RULINGS PROCURED**

18 Because of the Court’s reliance on the defense’s credibility re: non-receipt, Plaintiff lost: 1. **MIL**
19 **No. 1 Denied** (Jan. 27, p. 41:3–11) — Audio weaponized against Plaintiff. 2. **911 CDs Excluded**
20 (Jan. 27, p. 38:22–25) — Primary record barred from jury. 3. **911 Transcripts “Never Admitted”**
21 (Jan. 27, p. 39:18–24) — Context denied. 4. **Continuance Denied** (Feb. 18, p. 181) — No time
22 to fix “surprise.” 5. **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25) — Pleas for fairness ignored.
23 6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Plaintiff forced to “disprove” fraud. 7. **Supp.**
24 **Report Excluded** (RT 7, p. 156:24–28) — Corroborating evidence barred.
25 _____

26 **QUADRANT 3: THE ADMISSION**

27 **Apr 16, 2025 RT 7, p. 213, ll. 13–15** > “Sure. They were provided by Dolan. He has had them
28 for whatever, sure.” — Priya D. Navaratnasingham (Counsel for Defense)

QUADRANT 4: THE NINE PROOFS OF RECEIPT

1. **Aug 18, 2022:** Service by Dolan to CSK (Jessup, Tr. 139-140).
2. **Aug 18, 2022:** Rosario depo — Chambers (CSK) present.
3. **Sept 30, 2022:** Abdelhalim depo — Chambers (CSK) present.
4. **May 4, 2023:** CSK → PSA file transfer (Sub of Atty).
5. **Feb 1, 2024:** PSA subpoena for same records (Order CA1147102-021).
6. **Feb 26, 2024:** PSA receives production from SFPD (Report 210079556).
7. **Sept 9, 2024:** PSA receives ROGs identifying CAD logs.
8. **Feb 18, 2025:** Jessup confirms “since 2021” (Hr’g Tr. 139:11).
9. **Apr 16, 2025: ADMISSION OF RECEIPT** (RT 7, 213:13-15).

BOTTOM BANNER: THE LEGAL DOCTRINE

- **Fraud on the Court:** Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238; Stevenot v. Harbany (1984) 154 Cal.App.3d 1051.
- **Extrinsic Fraud:** Kulchar v. Kulchar (1969) 1 Cal.3d 467.
- **Attorney Deceit:** Bus. & Prof. Code § 6128(a); Rickley v. Goodfriend (2013) 212 Cal.App.4th 1136.
- **Anti-SLAPP Pre-emption:** Flatley v. Mauro (2006) 39 Cal.4th 299.
- **Litigation-Privilege Pre-emption:** Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232.

GRAVAMEN: Defense counsel used their professional status to mislead the Court into gutting Plaintiff’s case based on a known false premise of non-receipt. This is a fraud on the integrity of the judicial process.

Dated: April 18, 2026



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